

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Robert Bryan	Team: Squad #13	CCRB Case #: 201904595	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 03/01/2019 6:10 PM	Location of Incident: Utica Avenue and East New York Avenue	Precinct: 71	18 Mo. SOL 9/1/2020	EO SOL 4/18/2021	
Date/Time CV Reported Mon, 05/20/2019 9:49 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/28/2019 11:03 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mario Bueno	11861	960290	071 PCT
2. SGT Martin Cunningham	02100	946888	071 PCT
3. POM Anthony Blum	00426	948681	071 PCT
4. LT Daniel Guida	00000	941862	071 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Sohaib Rasool	19491	959920	071 PCT
2. POM Anton Baird	08458	956407	071 PCT
3. POM John Mcmanus	15975	949309	071 PCT
4. POM Andreas Sargent	24928	943785	071 PCT
5. POM Anderson Thimote	16504	957399	071 PCT
6. POM Frank Beers	17641	945498	071 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Mario Bueno	Discourtesy: Police Officer Mario Bueno spoke discourteously to § 87(2)(b)	
B.POM Mario Bueno	Abuse: Police Officer Mario Bueno threatened to damage § 87(2)(b)'s property.	
C.LT Daniel Guida	Abuse: Lieutenant Daniel Guida frisked § 87(2)(b)	
D.LT Daniel Guida	Abuse: Lieutenant Daniel Guida searched § 87(2)(b)	
E.POM Anthony Blum	Abuse: Police Officer Anthony Blum searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	
F.POM Mario Bueno	Force: Police Officer Mario Bueno used physical force against § 87(2)(b).	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	
§ 87(2)(g), § 87(4-b)	§ 87(2)(g), § 87(4-b)	

Case Summary

On May 20, 2019, § 87(2)(b) filed this complaint over the phone with IAB on behalf of himself and his girlfriend, § 87(2)(b). It was received at the CCRB on May 28, 2019.

At approximately 6:10 p.m. on March 1, 2019, § 87(2)(b)'s vehicle was pulled over near the intersection of East New York Avenue and Utica Avenue in Brooklyn for failure to display his vehicle's registration by Police Officer Mario Bueno, Sergeant Martin Cunningham, and Police Officer Frank Beers, all of the 71st Precinct. PO Bueno ordered § 87(2)(b) to "Get the fuck out of the car" (**Allegation A – Discourtesy – Word; § 87(2)(g)**). PO Bueno threatened to break the windows of § 87(2)(b)'s vehicle (**Allegation B – Abuse of Authority – Threat to damage property; § 87(2)(g)**). Several other officers, including Lt. Daniel Guida of the 71st Precinct arrived as backup. Lt. Guida, identified via investigation, frisked and searched § 87(2)(b) (**Allegations C and D – Abuse of Authority – Frisk and Search; § 87(2)(g)**). PO Anthony Blum of the 71st Precinct searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants (**Allegation E – Abuse of Authority – Vehicle Search; § 87(2)(g)**). PO Bueno wrote § 87(2)(b) a summons and gave him a "chest bump" while handing it to him (**Allegation F – Force – Physical Force; § 87(2)(g)**). § 87(2)(g), § 87(4-b)

§ 87(2)(b) No arrest resulted from this incident.

The BWCs of Sgt. Cunningham, PO Bueno, PO Blum, PO Sohaib Rasool, PO Anton Baird, PO John McManus, PO Andreas Sargent, PO Anderson Thimote, all of the 71st Precinct, captured parts of this incident. The BWC footage is attached to IAs #33-41 (Board Review 01-09) and summarized in IAs #58 and #68 (Board Review 10-11).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Mario Bueno spoke discourteously to § 87(2)(b).
§ 87(2)(b):

Allegation (B) Abuse of Authority: Police Officer Mario Bueno threatened to damage § 87(2)(b)'s property.

§ 87(2)(b) said his vehicle was pulled over by PO Bueno, Sgt. Cunningham, and PO Beers, who were dressed in plainclothes, though he had committed no VTL infractions. PO Bueno approached his car and tried to open his door by pulling the handle, but it was locked. § 87(2)(b) refused to lower his window because he did not know if PO Bueno was an actual police officer. Either he or § 87(2)(b) who was sitting in the front passenger seat, called 911 and told the dispatcher that they wanted to wait to comply until "actual police officers" arrived. PO Bueno said to § 87(2)(b) "Get the fuck out of the car" and told him, "You're going to get the fuck out one way or the other," but § 87(2)(b) refused to comply. PO Bueno and Sgt. Cunningham banged on § 87(2)(b)'s vehicle's windows with their flashlights, and PO Bueno threatened to break § 87(2)(b)'s window. § 87(2)(b) was not told why he had been pulled over or why he needed to exit his vehicle (Board Review 12).

§ 87(2)(b) stated that PO Bueno ordered § 87(2)(b) to produce his license and registration, and that § 87(2)(b) instead asked PO Bueno why he was being pulled over. § 87(2)(b) also asked PO Bueno why they had been pulled over, but PO Bueno did not respond. PO Bueno banged on the window with his flashlight but did not use profanity or threaten to break the window. § 87(2)(b) and § 87(2)(b) were eventually told that they were pulled over for running a red light, which she disputed they did.

PO Bueno and Sgt. Cunningham both said prior to stopping § 87(2)(b)'s vehicle, they observed that it had an illegal license plate cover. They ran § 87(2)(b)'s license plate (before initiating the vehicle stop), and the results showed that the vehicle's registration was expired. The officers then stopped § 87(2)(b)'s vehicle. PO Bueno said that upon his approach, § 87(2)(b) refused to lower his window and refused multiple orders to produce his identification. PO Bueno and Sgt. Cunningham both said they knocked on § 87(2)(b)'s vehicle's windows with their flashlights. PO Bueno did not recall making the alleged discourteous or threatening statements and Sgt. Cunningham denied hearing him do so (Board Review 23-24).

The BWC footage does not begin until after the point in time when this aspect of the incident is alleged to have occurred.

§ 87(2)(b) alleged that PO Bueno spoke discourteously toward him and threatened to damage his property, but PO Bueno did not recall doing so, Sgt. Cunningham denied hearing PO Bueno do so, and § 87(2)(b), § 87(2)(b)'s girlfriend, denied that these allegations took place. § 87(2)(b)

§ 87(2)(b), § 87(2)(g)

Allegation (C) Abuse of Authority: Lieutenant Daniel Guida frisked § 87(2)(b)

Allegation (D) Abuse of Authority: Lieutenant Daniel Guida searched § 87(2)(b).

§ 87(2)(b) stated that about 15 minutes after he was initially stopped, Lt. Guida arrived on scene and ordered him to step out of the car. § 87(2)(b) and § 87(2)(b) both exited the vehicle at the same time. Upon § 87(2)(b) exiting his vehicle, Lt. Guida asked § 87(2)(b) if he had guns, drugs, or weapons on him, and § 87(2)(b) said no. Lt. Guida, identified via investigation, frisked § 87(2)(b) with negative results. § 87(2)(b) did not allege that he was searched.

Lt. Guida said by the time § 87(2)(b) exited his vehicle, he intended to arrest § 87(2)(b) for obstructing governmental administration. He asked § 87(2)(b) if he "had anything sharp or pointy that was going to cut or hurt" him before frisking and searching § 87(2)(b) and he said these actions were done incident to § 87(2)(b)'s lawful arrest. § 87(2)(b) ultimately identified himself to the officers and once he did so, Lt. Guida used his discretion in deciding to release § 87(2)(b) from the scene with a summons in lieu of arresting him.

PO Rasool's BWC footage, at the 07:50 minute mark of the media player timestamp (visible at the bottom of the screen), captures Lt. Guida frisking § 87(2)(b) over his torso and hips, putting his hands in § 87(2)(b)'s pockets, and asking § 87(2)(b) "Do you have anything that's going to hurt me?" (Board Review 05).

An arresting officer may conduct a frisk to ensure his personal safety immediately after apprehension to find weapons, evidence, or contraband. NYPD Patrol Guide, Procedure 208-5 (Board Review 16).

§ 87(2)(b), § 87(2)(g)

Allegation (E) Abuse of Authority: Police Officer Anthony Blum searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

§ 87(2)(b) said PO Blum, identified via investigation, arrived at the same time as Lt. Guida. PO Blum approached § 87(2)(b)'s vehicle and removed § 87(2)(b)'s wallet from inside the vehicle, near the gear stick between the front two seats. § 87(2)(b) was talking to Lt. Guida at the time, but he said he “caught a side glimpse” of this happening. § 87(2)(b) saw PO Blum hand his wallet, which contained § 87(2)(b)'s driver's license inside, to PO Bueno.

§ 87(2)(b) said § 87(2)(b) produced his ID to the officers, and that no officer ever reached into the vehicle (Board Review 17).

In PO Bueno's BWC footage, at the 16:54 minute mark of the media player timestamp (visible at the bottom of the screen), the voice of Lt. Guida is heard off screen asking § 87(2)(b) for his license. § 87(2)(b) who is visible onscreen, says to § 87(2)(b) “Can you show them my wallet? Show them my license.” PO Blum walks around the front of § 87(2)(b)'s car and asks, “Miss, you have his wallet?” § 87(2)(b) replies, “Yes,” and hands PO Blum something that is initially not visible due to the camera angle. At 17:15, PO Blum walks back around the front of the car and shines a flashlight at the object § 87(2)(b) handed him, which is a card. (Board Review 02).

§ 87(2)(b), § 87(2)(g)

Allegation (F) Force: Police Officer Mario Bueno used physical force against § 87(2)(b) :

§ 87(2)(b) said PO Bueno ultimately handed him his wallet and two summonses, § 87(2)(b). As PO Bueno handed § 87(2)(b) the summonses, PO Bueno “chest bumped” § 87(2)(b). § 87(2)(b) believed PO Bueno did this to provoke him and get him to react in anger. § 87(2)(b) asked Lt. Guida, “Are you going to stand there and pretend not to see what this man is doing? He just basically walked up and pushed his body against my body.” Lt. Guida did not respond.

PO Bueno did not recall making any physical contact with § 87(2)(b) and Sgt. Cunningham denied seeing PO Bueno do so.

In PO Bueno's BWC footage, at the 30:40 minute mark of the media player timestamp (visible at the bottom of the screen), PO Bueno approaches § 87(2)(b) and hands him the summonses. PO Bueno does not make physical contact with § 87(2)(b) in any way (Board Review 02).

The BWC footage reveals that PO Bueno did not “chest bump” or make any other physical contact with § 87(2)(b) at the point during the incident where he is alleged to have done so. ■■■

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been a party to two previous CCRB complaints and has been named as a victim in two allegations (Board Review 19).
 - § 87(2)(b)
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 20).
- PO Bueno has been a member of service for four years and has been named as a subject in 11 allegations in four previous cases, four of which were substantiated.
 - Case 201805446 involved a substantiated allegation of a retaliatory arrest. The Board recommended Formalized Training and the NYPD concurred.
 - Case 201809509 involved two substantiated allegations of discourtesy (action) and one substantiated allegation of discourtesy (word). The Board recommended Formalized training and the NYPD disposition is still pending.
 - § 87(2)(g)
- Sgt. Cunningham has been a member of service for 11 year and has been named as a subject in 12 allegations in five previous cases, one of which were substantiated.
 - Case 201404897 involved a substantiated allegation of a question. The Board recommended Formalized Training and the NYPD imposed Formalized Training.
 - § 87(2)(g)
- Lt. Guida has been a member of service for 13 years and has been named as a subject in 40 allegations in 13 previous cases, three of which were substantiated.
 - Case 201707882 involved a substantiated allegation of a frisk, a substantiated allegation of a search (of person), and a substantiated allegation of a vehicle stop. The Board recommended charges and the NYPD imposed no punishment.
 - § 87(2)(g)
 - PO Blum has been a member of service for nine years and has been named as a subject in seven allegations in five previous cases, none of which were

substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- On April 13, 2020, a Notice of Claim inquiry was sent the New York City Comptroller's Office regarding this incident. The results will be added to the casefile upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad 13

Investigator:	<u>Robert Bryan</u>	<u>Inv. Robert Bryan</u>	<u>04/24/2020</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Laura Kastner</u>	<u>IM Laura Kastner</u>	<u>04/24/2020</u>
	Signature	Print Title & Name	Date